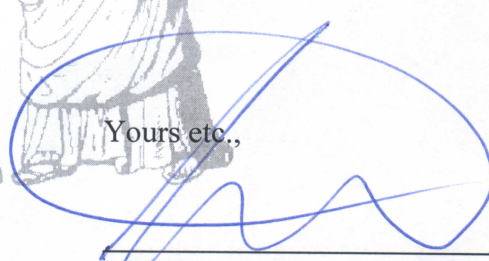


**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS****TATIANA POPOVA, ALEXANDR
POPOV, SAINT SURIN EDOUARD and
MYRLENE EDOUARD,****Plaintiff(s),****- against -****RONNIE D. SMITH, ANGELINA
APREA-SMITH, and "JOHN DOE 1, 2, 3"
as tenants, (true name unknown), THE
NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER
YAKOVLEV (Shield No.: 945119), and
POLICE OFFICER JOHN "DOE" (name
and shield number unknown),****Defendant(s).****Index No.: 500548/2014**Plaintiff(s) designates
Kings County as the place of trialThe basis of the venue is
Defendants' residence; Place of Occurrence**AMENDED SUMMONS**Defendants' residence:
6632 Avenue L
Brooklyn, New York 11234**To the above named Defendant(s)**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY 10279
April 13, 2015

Yours etc.,

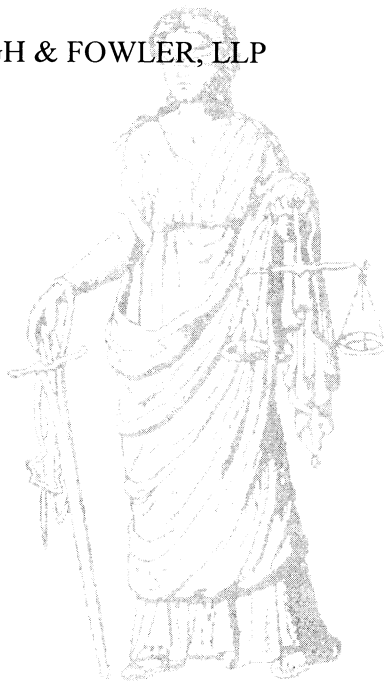

STEVEN G. SHAKHNEVICH, ESQ.
SHAKHNEVICH LAW GROUP, PC
Attorneys for Plaintiff
233 Broadway, Suite 810
New York, NY 10279
(212) 233-7800

Defendants' Addresses

THE NEW YORK CITY
POLICE DEPARTMENT,
POLICE OFFICER
YAKOVLEV (Shield No.:
945119), and POLICE
OFFICER JOHN "DOE" (name
and shield number unknown)
One Police Plaza
New York, NY 10007

RONNIE D. SMITH
ANGELINA APREA-SMITH
6632 Avenue L
Brooklyn, New York 11234

RONNIE D. SMITH
ANGELINA APREA-SMITH
C/O McCABE COLLINS, MCGEOUGH & FOWLER, LLP
346 Westbury Road
Carle Place, NY 11514



**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

**TATIANA POPOVA, ALEXANDR
POPOV, SAINT SURIN EDOUARD and
MYRLENE EDOUARD,**

Plaintiff(s),

- against -

**RONNIE D. SMITH, ANGELINA
APREA-SMITH, and “JOHN DOE 1, 2, 3”
as tenants, (true name unknown), THE
NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER
YAKOVLEV (Shield No.: 945119), and
POLICE OFFICER JOHN “DOE” (name
and shield number unknown),**

Defendant(s).

Index No.: 500548/2014

AMENDED VERIFIED COMPLAINT

Plaintiffs, TATIANA POPOVA, ALEXANDR POPOV, SAINT SURIN EDOUARD
and MYRLENE EDOUARD, by their attorneys, SHAKHNEVICH LAW GROUP, P.C., upon
information and belief by way of Complaint against defendants herein allege:

PARTIES

1. The plaintiff TATIANA POPOVA (“TATIANA”) is a resident of the County
of Kings, State of New York.
2. The plaintiff ALEXANDR POPOV (“ALEX”) is a resident of the County of
Kings, State of New York.
3. The plaintiff SAINT SURIN EDOUARD (“SAINT SURIN”) is a resident of
the County of Kings, State of New York.

4. The plaintiff MYRLENE EDOUARD (“MYRLENE”) is a resident of the County of Kings, State of New York.

5. Upon information and belief, the defendants RONNIE D. SMITH (“RONNIE”) and ANGELINA APREA SMITH (“ANGELINA”) are residents of the County of Kings, State of New York.

6. Upon information and belief, the defendant JOHN DOE (“DOE”) is a resident of the County of Kings, State of New York.

AS FOR THE FIRST CAUSE OF ACTION ON BEHALF OF TATIANA POPOVA

7. Plaintiffs repeat, reiterate, and reallege each and every and all of the allegations contained in the paragraphs of this complaint marked and designated “1” through “6,” inclusive, with the same force and effect as if hereinafter set forth at length.

8. On or about January 18, 2014, RONNIE and ANGELINA were the owners and/or keepers of certain vicious dogs (“THE DOGS”).

9. On or about January 18, 2014, JOHN DOE was the owner and/or keeper of THE DOGS.

10. On or about January 18, 2014, TATIANA was lawfully traversing along the southern sidewalk of Avenue L at the intersection of East 68th Street (“PLACE OF OCCURRENCE”), near the property owned by RONNIE and ANGELINA, located at 6632 Avenue L, Brooklyn New York 11234.

11. On or about January 18, 2014, TATIANA was lawfully traversing immediately in front of the PLACE OF OCCURRENCE.

12. While the plaintiff was lawfully upon the PLACE OF OCCURRENCE, THE

DOGS attacked and did bite TATIANA and inflict on her painful and severe injuries.

13. As a result thereof, TATIANA has sustained severe and permanent injuries to various parts of her body, and as a further result thereof, TATIANA suffered fright and shock, great pain, mental anguish and sustained other and further injuries and damage.

14. Upon information and belief, at all times hereinafter mentioned, RONNIE and ANGELINA by their agents, servants and/or employees owned the PLACE OF OCCURRENCE and THE DOGS.

15. Upon information and belief, at all times hereinafter mentioned, RONNIE, ANGELINA and DOE, by their agents, servants and/or employees operated the PLACE OF OCCURRENCE.

16. Upon information and belief, at all times hereinafter mentioned, RONNIE, ANGELINA and DOE, by their agents, servants and/or employees maintained the PLACE OF OCCURRENCE and THE DOGS.

17. Upon information and belief, at all times hereinafter mentioned, RONNIE, ANGELINA and DOE, by their agents, servants and/or employees controlled the PLACE OF OCCURRENCE and THE DOGS.

18. Upon information and belief, at all times hereinafter mentioned, RONNIE, ANGELINA and DOE by their agents, servants and/or employees occupied the PLACE OF OCCURRENCE.

19. Upon information and belief, at all times hereinafter mentioned, RONNIE, ANGELINA and DOE, by their agents, servants and/or employees managed the PLACE OF OCCURRENCE and THE DOGS.

20. Upon information and belief, at all times hereinafter mentioned, RONNIE, ANGELINA and DOE, by their agents, servants and/or employees supervised the PLACE OF OCCURRENCE and THE DOGS.

21. That RONNIE, ANGELINA and DOE, their agents, servants and/or employees had a duty to keep the PLACE OF OCCURRENCE in a reasonably safe condition.

22. That the injury occurred solely and wholly due to the negligence and carelessness of the aforementioned Defendants, their agents, servants and employees in the ownership, operation, occupation, control, management, supervision and maintenance of the place of occurrence; in causing said place of occurrence, to be, become and remain in a dangerous, hazardous and defective condition; in allowing said place of occurrence to remain in such dangerous, hazardous and defective condition so as to form a trap and menace to the individuals lawfully present thereat, and to the plaintiff in particular; in failing to prevent individuals from traversing thereat; in failing to erect barricades around the area; in failing to post warning signs; in failing to inspect the area; in violating its duties to the general public and to the plaintiff, in particular; in causing and creating the existence of said dangerous and hazardous condition; in failing to comply with the laws, rules, ordinances, statutes and codes of the City of New York and the State of New York there and then in effect; in allowing the condition to exist for a considerable length of time prior to the accident, the Defendants, their agents, servants and/or employees knew or should have known that such a hazardous condition would cause individuals to be injured; in failing to rectify and/or otherwise correct or remedy the aforesaid dangerous and hazardous condition although the Defendants had due notice and knowledge of the condition, both actual and constructive; in failing to use that degree of care which a prudent person would in like circumstances; and in being

otherwise negligent, all of which negligent acts and/or omission were the direct and proximate cause of the injuries sustained by plaintiff here.

23. The Defendants, their agents, servants and/or employees had due notice of the temperament and vicious propensities of THE DOGS, and the location where it was placed, and by reasonable care and inspection, the occurrence could have been avoided.

24. That the Defendants, their agents, servants and/or employees, had ample opportunity to rectify the aforementioned dangerous and hazardous condition, but chose not to do so, proximately causing TATIANA's injuries.

25. That by reason of the foregoing, plaintiff, sustained severe permanent personal injuries, became sick, sore, lame and disabled; suffered injury to legs, knees, was confined to hospital, bed and home and may in the future be so confined; was incapacitated from attending her usual duties and she was not employed and may in the future be so incapacitated.

26. That no negligence in any manner whatsoever on the part of TATIANA contributed to the occurrence stated herein.

27. That by reason of the foregoing, the plaintiff has been damaged in a sum exceeding the monetary jurisdictional limitations of all lower Courts in this State.

AS FOR THE SECOND CAUSE OF ACTION ON BEHALF OF SAINT SURIN EDOUARD

28. Plaintiffs repeat, reiterate, and reallege each and every and all of the allegations contained in the paragraphs of this complaint marked and designated "1" through "6," inclusive, with the same force and effect as if hereinafter set forth at length.

29. On or about January 18, 2014, RONNIE and ANGELINA were the owners and/or keepers of certain vicious dogs ("THE DOGS").

30. On or about January 18, 2014, JOHN DOE was the owner and/or keeper of THE DOGS.

31. On or about January 18, 2014, SAINT SURIN was lawfully traversing along the southern sidewalk of Avenue L at the intersection of East 68th Street ("PLACE OF OCCURRENCE"), near the property owned by RONNIE and ANGELINA, located at 6632 Avenue L, Brooklyn New York 11234.

32. On or about January 18, 2014, SAINT SURIN was lawfully traversing immediately in front of the PLACE OF OCCURRENCE.

33. While the plaintiff was lawfully upon the PLACE OF OCCURRENCE, THE DOGS attacked and did bite SAINT SURIN and inflict on her painful and severe injuries.

34. As a result thereof, SAINT SURIN has sustained severe and permanent injuries to various parts of her body, and as a further result thereof, SAINT SURIN suffered fright and shock, great pain, mental anguish and sustained other and further injuries and damage.

35. Upon information and belief, at all times hereinafter mentioned, RONNIE and ANGELINA by their agents, servants and/or employees owned the PLACE OF OCCURRENCE and THE DOGS.

36. Upon information and belief, at all times hereinafter mentioned, RONNIE, ANGELINA and DOE, by their agents, servants and/or employees operated the PLACE OF OCCURRENCE.

37. Upon information and belief, at all times hereinafter mentioned, RONNIE, ANGELINA and DOE, by their agents, servants and/or employees maintained the PLACE OF OCCURRENCE and THE DOGS.

38. Upon information and belief, at all times hereinafter mentioned, RONNIE, ANGELINA and DOE, by their agents, servants and/or employees controlled the PLACE OF OCCURRENCE and THE DOGS.

39. Upon information and belief, at all times hereinafter mentioned, RONNIE, ANGELINA and DOE by their agents, servants and/or employees occupied the PLACE OF OCCURRENCE.

40. Upon information and belief, at all times hereinafter mentioned, RONNIE, ANGELINA and DOE, by their agents, servants and/or employees managed the PLACE OF OCCURRENCE and THE DOGS.

41. Upon information and belief, at all times hereinafter mentioned, RONNIE, ANGELINA and DOE, by their agents, servants and/or employees supervised the PLACE OF OCCURRENCE and THE DOGS.

42. That RONNIE, ANGELINA and DOE, their agents, servants and/or employees had a duty to keep the PLACE OF OCCURRENCE in a reasonably safe condition.

43. That the injury occurred solely and wholly due to the negligence and carelessness of the aforementioned Defendants, their agents, servants and employees in the ownership, operation, occupation, control, management, supervision and maintenance of the place of occurrence; in causing said place of occurrence, to be, become and remain in a dangerous, hazardous and defective condition; in allowing said place of occurrence to remain in such dangerous, hazardous and defective condition so as to form a trap and menace to the individuals lawfully present thereat, and to the plaintiff in particular; in failing to prevent individuals from traversing thereat; in failing to erect barricades around the area; in failing to post warning signs; in

failing to inspect the area; in violating its duties to the general public and to the plaintiff, in particular; in causing and creating the existence of said dangerous and hazardous condition; in failing to comply with the laws, rules, ordinances, statutes and codes of the City of New York and the State of New York there and then in effect; in allowing the condition to exist for a considerable length of time prior to the accident, the Defendants, their agents, servants and/or employees knew or should have known that such a hazardous condition would cause individuals to be injured; in failing to rectify and/or otherwise correct or remedy the aforesaid dangerous and hazardous condition although the Defendants had due notice and knowledge of the condition, both actual and constructive; in failing to use that degree of care which a prudent person would in like circumstances; and in being otherwise negligent, all of which negligent acts and/or omission were the direct and proximate cause of the injuries sustained by plaintiff here.

44. The Defendants, their agents, servants and/or employees had due notice of the temperament and vicious propensities of THE DOGS, and the location where it was placed, and by reasonable care and inspection, the occurrence could have been avoided.

44. That the Defendants, their agents, servants and/or employees, had ample opportunity to rectify the aforementioned dangerous and hazardous condition, but chose not to do so, proximately causing SAINT SURIN's injuries.

45. That by reason of the foregoing, plaintiff, sustained severe permanent personal injuries, became sick, sore, lame and disabled; suffered injury to legs, knees, was confined to hospital, bed and home and may in the future be so confined; was incapacitated from attending her usual duties and she was not employed and may in the future be so incapacitated.

46. That no negligence in any manner whatsoever on the part of SAINT SURIN

contributed to the occurrence stated herein.

48. That by reason of the foregoing, the plaintiff has been damaged in a sum exceeding the monetary jurisdictional limitations of all lower Courts in this State.

AS FOR THE THIRD CAUSE OF ACTION ON BEHALF OF ALEXANDR POPOV

49. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs of this complaint numbered "1" through "45," inclusive with the same force and effect as if more fully set forth at length herein.

50. That prior to the commencement of this action and at the present time the plaintiff, ALEX, was and still is the husband of the plaintiff, TATIANA.

51. That plaintiff, ALEX, has been deprived of the services and companionship of his wife, TATIANA, and has been caused to expend and become obligated to expend sums of money for medical attention and medicines of her behalf.

52. That by reason of the foregoing, plaintiff, ALEX, has been damaged in the sum that exceeds monetary jurisdictional limits of all lower courts in this State.

AS FOR THE FOURTH CAUSE OF ACTION ON BEHALF OF MYRLENE EDOUARD

53. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs of this complaint numbered "1" through "49," inclusive with the same force and effect as if more fully set forth at length herein.

54. That prior to the commencement of this action and at the present time the plaintiff, MYRLENE, was and still is the wife of the plaintiff, SAINT SURIN.

55. That plaintiff, MYRLENE, has been deprived of the services and

companionship of her husband, SAINT SURIN, and has been caused to expend and become obligated to expend sums of money for medical attention and medicines of his behalf.

55. That by reason of the foregoing, plaintiff, MYRLENE, has been damaged in the sum that exceeds monetary jurisdictional limits of all lower courts in this State.

**AS AND FOR THE FIFTH CAUSE OF ACTION
AGAINST THE NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER YAKOVLEV
(Shield No.: 945119), and POLICE OFFICER JOHN "DOE"
(name and shield number unknown),**

56. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs of this complaint numbered "1" through "55," inclusive with the same force and effect as if more fully set forth at length herein.

57. Upon information and belief, at all times hereinafter mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT ("NYPD"), was and still is a New York City municipal agency with headquarters at One Police Plaza, New York, New York.

58. Upon information and belief, at all times hereinafter mentioned, NYPD, managed, controlled, maintained and supervised its police officers, patrol personnel, investigators, detectives, servants, agents, employees, officers, detectives, investigators and staff.

59. Upon information and belief, at all times herein mentioned, POLICE OFFICER YAKOVLEV (Shield No.: 945119), and POLICE OFFICER JOHN "DOE" (name and shield number unknown) (hereinafter referred to as "OFFICERS"), were police officers, patrol personnel, investigators, detectives, servants, agents, employees, officers, detectives, investigators and staff.

60. That on January 18, 2014, the OFFICERS responded to investigate a dog-bite incident at the PLACE OF OCCURRENCE and its immediate surroundings (hereinafter referred to as the "SCENE").

61. That it was the duty of the OFFICERS and NYPD to properly investigate the SCENE and to take all necessary precautions designed to prevent dangers to the public and in particular to the Plaintiff, TATIANA POPOVA.

62. That the above-referenced accident involving the plaintiff, TATIANA POPOVA was caused solely and wholly the negligence of NYPD and OFFICERS in failing to properly and safely investigate the SCENE; in failing to secure the SCENE; in failing to place barriers around said SCENE; in failing to permitting said SCENE to be, become and remain in the state of danger due to the presence of vicious dogs; in permitting such danger to exist for a lengthy period of time without taking the necessary safety precautions; in failing to undergo appropriate training; in failing to warn the public and plaintiff, TATIANA POPOVA in particular from traversing the dangerous SCENE; in failing to utilize their knowledge and training to prevent the SCENE from remaining in the state of danger, all of which acts and omissions

63. That the defendant, NYPD, by their servants, agents, employees, officers, detectives, investigators and staff were negligent, careless and reckless in the management and supervision of its personnel, staff, employees, detectives and/or police officers; in failing to promulgate and enforce rules and regulations, sufficient to ensure that police officers properly perform law enforcement operations; in failing to implement adequate procedure for hiring and credentialing police officers and detectives, all of which acts and/or omissions were a direct and proximate cause of the damages sustained by the plaintiff herein.

64. That there is no contributory negligence on the part of the Plaintiff.

65. On or about April 03, 2014, and within ninety (90) days after the claim herein arose, a Notice of Claim was duly served upon the defendants, setting forth:

1. The name and post office address of the claimant and their attorneys;
2. The nature of the claim;
3. Time when, place where, and the manner in which the claim arose;
4. The items of damage and injury claimed to have been sustained insofar as practical.

66. More than thirty (30) days have elapsed since the presentation of these claims, and the defendants have not adjusted the same.

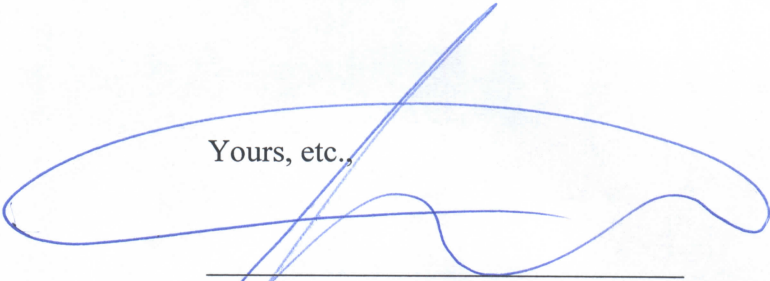
67. By reason of the foregoing, Plaintiff, TATIANA POPOVA has been damaged in an amount that exceeds the jurisdictional limitations of all lower Courts.

68. By reason of the foregoing loss of consortium claim, Plaintiff, ALEKSANDR POPOV, has been damaged in an amount that exceeds the jurisdictional limitations of all lower Courts.

WHEREFORE, Plaintiffs demand judgment against the defendants in an amount that exceeds the jurisdictional limitations of all lower Courts, together with the costs and disbursements and for such other relief as this Court deems just and proper.

Dated: New York, New York
April 13, 2015

Yours, etc.,



STEVEN SHAKHNEVICH, ESQ.
SHAKHNEVICH LAW GROUP, P.C.
Attorneys for Plaintiff(s)
233 Broadway, Suite 810
New York, NY 10279
(212) 233-7800

VERIFICATION

STATE OF NEW YORK)

: ss.:

COUNTY OF NEW YORK)

The undersigned, an attorney admitted to practice in the courts of New York State, shows:

I am the attorney for the plaintiffs in the within action; affirmant has read the foregoing AMENDED COMPLAINT and knows the contents thereof; that the same is true to affirmant's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes them to be true. This verification is made by affirmant and not by the plaintiffs, because the plaintiffs reside(s) and/or maintain a place of business outside the County in which affirmant maintains his office.

The grounds of deponent's belief as to all matters not stated upon deponent's knowledge are as follows: Facts and records in my file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
April 13, 2015



STEVEN G. SHAKHNEVICH, ESQ.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

**TATIANA POPOVA, ALEXANDR POPOV, SAINT SURIN EDOUARD and MYRENE
EDOUARD,**

Plaintiff(s),

- against -

**RONNIE D. SMITH, ANGELINA APREA-SMITH, and "JOHN DOE 1, 2, 3" as tenants,
(true name unknown), THE NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER YAKOVLEV (Shield No.: 945119), and POLICE OFFICER JOHN "DOE"
(name and shield number unknown),**

Defendant(s).

AMENDED SUMMONS AND VERIFIED COMPLAINT

SHAKHNEVICH LAW GROUP, P.C.

Attorney(s) for Plaintiff(s)
Office and Post Office Address, Telephone
**233 BROADWAY, Suite 810
New York, NY 10279
(212) 233-7800**

Service of a copy of the within

is hereby admitted.

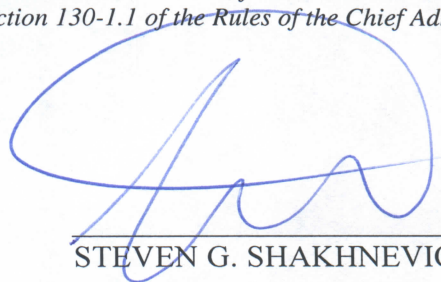
Dated,

Attorney(s) for defendant(s)

CERTIFICATION OF ATTORNEY

CERTIFICATION: *I hereby certify that all of the papers that I have served, filed or submitted to the court in this action are not frivolous as defined in subsection (s) of Section 130-1.1 of the Rules of the Chief Administrator of the Courts.*

Dated: April 13, 2015


STEVEN G. SHAKHNEVICH